

National Coalition for Gay and Lesbian Equality v Minister of Justice

NATIONAL COALITION FOR GAY AND LESBIAN EQUALITY AND ANOTHER v MINISTER OF JUSTICE AND OTHERS 1999 (1) SA 6 (CC)

Holding

The common-law offence of sodomy and related statutory provisions are unconstitutional. They violate equality (s 9), dignity (s 10) and privacy. Sexual orientation is an express prohibited ground of discrimination in the Constitution.

Significance

Landmark equality jurisprudence; foundation for later cases on same-sex partnership and marriage equality leading to the Civil Union Act 17 of 2006.

NOTE: Educational case summary.

— End of curated extract. Verify official text before reliance. —